TECHMATE ENGINEERING (PVT) LTD

vs

JENA MINES (PVT) LTD

IN THE HIGH COURT OF ZIMBABWE
MUTEVEDZI J
BULAWAYO, 11 April and 29 July 2026

I. Mafirakureva with *B. Dube,* for the applicant
R. Mutero with *W. Musikandi,* for the respondent

Opposed application- summary judgment

MUTEVEDZI J: Both Techmate Engineering (Pvt) Ltd **(**the applicant) and Jena Mine (Pvt) Ltd (the respondent) are companies duly registered in terms of the laws of Zimbabwe. They are embroiled in a commercial dogfight. The applicant filed a court application for summary judgment in terms of r 30(1) of the High Court Rules, 2021 (hereinafter "the Rules"). It sought the following relief:

> **"RELIEF SOUGHT**
>
> **1.** The court application for summary judgement be and is hereby granted.
> ***2.*** The Respondent be and is hereby ordered to pay the sum of US$ 297 532.00 (*Two Hundred and Ninety-Seven Thousand and five Hundred and Thirty-two United States Dollars)* together with interest at the rate of 5% per annum from the 30th of May 2025 to date of full payment.
> ***3.*** Collection commission at 10% per annum of the amount claimed in paragraph 2 above."

FACTUAL BACKGROUND

[1] The applicant entered into an agreement with the respondent in terms of which it would render mining services, supply mining equipment, and provide raw materials on credit. In turn, the respondent was required to settle the debt as and when it fell due. Pursuant to that arrangement, the applicant issued statements of account reflecting the services rendered. At some stage, the parties disagreed. They haggled over what was owed to the applicant. When the dispute could not be resolved, the applicant sued summons for the recovery of US$297 532.00 with interest at 5% per annum as from 30 May 2025 to the date of full payment and collection commission at 10% of the amount claimed.

APPLICANT'S CASE

[2] In its founding affidavit, the applicant said it submitted a statement of account to the respondent. The respondent queried that account and sought variations. The applicant said it acceded to the variations but the respondent would not settle the debt. The parties convened a meeting in a bid to resolve the impasse. Thereafter, the respondent acknowledged its indebtedness in writing by correspondence dated 1 April 2025. It undertook to liquidate the debt in full by June 2025. The applicant further averred that despite repeated follow-ups, including a letter of demand written on 2 July 2025, no payment was effected. Frustrated, the applicant then sued out summons as stated earlier. Needless to state, the respondent entered appearance to defend. Thereafter, the parties through their legal practitioners once again attempted to settle the matter. Those efforts culminated in the parties drafting a deed of settlement. The respondent is alleged to have initially accepted the deed of settlement subject to minor amendments which once again, the applicant said it accepted. In a sudden volte-face the respondent later reneged and refused to sign the deed. The applicant was left with no choice but to issue a notice to plead. The respondent subsequently filed its plea admitting liability only in the sum of **US$73,883.25** and denying the rest of the amount.

[3] During arguments, the applicant's counsel, Mr *Mafirakureva* argued that the respondent's entry of appearance to defend was not genuine because it never disputed the amount claimed by the applicant during their engagements. He said the respondent even proposed a payment plan. He challenged the contention by the respondent in its papers that the payment proposal was on a *without prejudice* basis because the communication between the parties did not indicate so. To the applicant, the proposal by the respondent to have the emails expunged from the record was the height of insincerity. Counsel further argued that the respondent does not challenge the supply of services and equipment as stated by the applicant in its founding affidavit but only challenges the total amount claimed without any basis. In the end, he said there is no

arguable case that can be referred to trial as the applicant's case is clearly unarguable both in fact and in law.

[4] Mr *Mafirakureva* abandoned the claim of 10% of the collected amount as claimed in the summons but insisted on its payment in terms of the Law Society of Zimbabwe Tariff.

[5] On costs, the applicant prayed for costs on the higher scale because as counsel put it, the respondent never disputed the amount claimed from the onset. He said the respondent simply opposed the application in order to delay and frustrate the business of the applicant.

RESPONDENT'S CASE

[6] In its papers, the respondent contended that the applicant's case is not clear and unarguable. It said its plea raised a *prima facie* defence that warrants referral of the matter to trial. It argued that the issue of unilateral variations of invoices has always been a bone of contention between the parties and does not support the US$297 532.00 claimed on the summons. The respondent further denied acknowledging its indebtedness as claimed in the email dated 1 April 2025. It also contended that even then, the emails were on a *without prejudice* basis.

[7] At the hearing, counsel for the respondent, Mr *Mutero* referred the Court to the case of *Tavenhavave & Machigauta Legal Practitioners* v *Messenger of Court* SC53-14 where the Supreme Court held that summary judgment can be defeated if there is a mere possibility of the defendant's defence succeeding. He argued that there was no acknowledgment of the total sum claimed and that the alleged acknowledgment of debt which the applicant seeks to rely on does not indicate the amount owed. To him, the correspondence did not amount to an acknowledgment of debt. He further referred the Court to the authority of *Ndebele* v *AG-Venture (Pvt) Ltd* HH39-12 where this Court held that an acknowledgment of debt must be an unconditional acceptance of an ascertained amount of money and the payment of which is due to a creditor.

[8] Regarding the *without prejudice* communication, counsel said generally such communication should not be used against a party which made it and the court cannot have regard to it in assessing liability. He said a party would have communicated freely and without fear of such communication being used against him/her/it should the

negotiations fail. He reinforced that an offer without prejudice does not mean acceptance of liability. In conclusion, counsel said the respondent remained adamant that the claim is not clear and unassailable and that the defence raised by the respondent is plausible.

[9] On the collection commission, the respondent once more, directed the Court to the authorities of *Savana Tobacco* v *Alshams Global Ltd & Anor* SC25-18 *a*t p 17-19 and *Scotfin* v *Ngomahuru* 1997 (2) ZLR 567 (H) at 569C-D where it was held that once a matter is resolved through litigation, collection commission cannot be claimed. With regards to costs, the respondent also made the same request as the applicant. Mr *Mutero* argued that it is the applicant who was not litigating in good faith as parties were still negotiating.

[10] In response, Mr *Mafirakureva* said the applicant was not relying solely on the acknowledgment of debt but on a thread of documentation which verifies the cause of action in detail and conclusively establishes the mount owed. He moved the Court to grant the application and supported his argument with the case of *Takawira* v *ZISCO* HB42-18.

[11] I may need to add that although both parties took points *in limine* in their papers they both abandoned them at the hearing.

The Law

[12] The principles governing summary judgment are settled in this jurisdiction. Summary judgment is an extreme remedy which a court will only grant in exceptional instances where an applicant has clearly shown that a defendant has no *bona fide* defence and has entered appearance to defend solely for purposes of delaying the inevitable. MATHONSI J (now JA) in *Takawira* v *ZISCO (supra)* described it as follows: -

> "Summary judgment is a remedy which deliberately denies a *mala fide* defendant the benefit of the *audi alteram partem* rule because such a defendant would be wasting the court's time and abusing the process of the court. It is granted to a plaintiff whose case is unassailable and as such it is only when all the proposed defences to the claim are clearly unarguable both in fact and in law that the drastic remedy of summary judgment is available to the plaintiff. See *Chrisma v Stutchbury & Anor* 1973 (1) RLR 277 (SR) at 279.
> In order to succeed in defeating such an application the respondent must disclose a defence and material facts upon which that defence is based with sufficient clarity and completeness so as

> to persuade the court that if proved at the trial such facts will constitute a defence to the claim. See *Hales* v *Doverick Investments [Pvt] Ltd* 1998 [2] ZLR 235 [H] at 239 A-B; *Kingstons Ltd* v *L D Ineson [Pvt] Ltd* 2006 [1] ZLR 451[S] at 458 F-H" (my emphasis)

[13] Because it muzzles a defendant from presenting his/her/its arguments before a court by denying him the right to be heard, a court will not grant summary judgment if there is any possibility that the defence raised on the papers might succeed. It is for that reason that the threshold of what a defendant has to demonstrate has been pitched so low. A mere possibility that a defence will succeed suffices to deflect the grant of summary judgment. Authorities have repeatedly stated that "all that a defendant has to establish in order to succeed in having an application for summary judgment dismissed is that "there is a mere possibility of his success"; "he has a plausible case"; "there is a triable issue"; or, "there is a reasonable possibility that an injustice may be done if summary judgment is granted". See the cases of *Davis v Terry* 1957 (4) SA 98 (SR); *Webb v Shell Zimbabwe (PvT) Ltd* 1982 (1) ZLR 102; *Jena v Nechipote* 1986 (1) ZLR 29 (SC); *Kingstons Limited v L D Ineson (Pvt) Ltd* 2006 (1) ZLR 451 (S) at 458 F-G.

[14] What the above means is that an applicant in a summary judgment must positively state the cause of action and the specific amount claimed, if any, that in his/her/its belief there is no *bona fide* defence to the action. The applicant may attach to his affidavit documents supporting his application. In turn, the respondent must disclose a defence which is likely to succeed at trial or raise a triable issue which can lead to a possibility of injustice if judgment is summarily granted against him/her/it. It is not sufficient for a respondent to make vague generalisations or to provide bald and sketchy facts. Instead, a respondent must disclose material facts with sufficient clarity and completeness to demonstrate the existence of such a defence. See *Hales* v *Doverick Investments (Pvt) Ltd* 1998 (2) ZLR 235 (HC).

Application of the law to the facts

Whether or not the plaintiff's claim is clearly unarguable

[15] The contractual relationship between the parties is not disputed. That the applicant also rendered services and supplied mining equipment and materials to the respondent is equally common cause. The dispute between the parties is primarily centred on the quantum of the indebtedness. The applicant's claim is for **US$297**

532.00. To support its claim, the applicant attached supporting annexures, placing reliance on an alleged acknowledgment of debt contained in correspondence dated 1 April 2025. The respondent does not deny liability in its entirety. It admits owing the applicant to the tune of **US$73,883.25**.

[16] In response to the application, the respondent challenges the applicant's claim on three fronts. First, it argued that the acknowledgment of debt is insufficient as it does not unequivocally state the amount acknowledged. Second, it submits that that omission is fundamental, particularly because the respondent does not dispute liability but contests the quantum. It renders the document an illiquid one. Third, the respondent alleged that the applicant failed to attach primary evidence in support of its claim. Fourth, it argued that the correspondences exchanged between the parties were made on a *"without prejudice"* basis and are therefore inadmissible against the respondent. It cannot be used to prove the respondent's liability to the amount claimed.

[17] The law is unambiguous that for a document to constitute an acknowledgment of debt, it must be a clear and unequivocal admission of liability for a specific and ascertainable amount. It must have been executed by the debtor in favour of the creditor wherein the debtor confirms the existence of a debt for a specified amount. My view is therefore that the debtor must clearly admit his/her/its indebtedness to the creditor in the specified sum. The principle was eleoquently stated in *African Banking Corporation of Zimbabwe Ltd* v *Sunjet Development Holdings (Pvt) Ltd* HH190-14 as follows:

> "As regards the Acknowledgment of Debt, whether it is termed an Acknowledgment of Debt or contract is neither here nor there. <u>What matters is the fact that the respondent, in that document, acknowledges that it is indebted to the applicant in the sum claimed.</u>"

In the present matter, the so-called acknowledgment of debt omits to specify the amount alleged to be owed. That on its own, diminishes its evidential value. It falls short in establishing the full extent of the respondent's indebtedness and on that basis alone cannot qualify as a liquid document capable of founding a claim for summary judgment.

[18] My further view is that the applicant did not satisfactorily depose to and disclose the material facts on which its cause of action is founded. It did not produce the primary evidence to support its claim. Where the amount is disputed, the evidentiary burden rests squarely on the applicant to place before the court, cogent and verifiable proof of

the indebtedness. That burden has not been discharged in the present matter. The evidence demonstrates that there has always been some haggling and discord regarding the amount that the respondent owed the applicant. At some stage, the applicant itself had to adjust its statement of account in line with the representations made by the respondent. Summary judgment cannot be granted based on a negotiated amount that the parties did not agree on from the start. The remedy requires a clear, unassailable, and verified claim where there is complete *ad idem* or consensus on the debt. An amount arrived at through compromise requires mutual agreement. One party cannot unilaterally impose a negotiated figure and then claim that the amount was indisputable. In this case, the respondent disputes the amount owed and argues that there was never an agreement on the sum. That, on the threshold of a mere possibility of a defence succeeding, raises a plausible and triable defence. The debt or rather, the specific settlement amount is being genuinely disputed. The applicant would require evidence to prove how much is owed.

[19] Admittedly, it is possible for a valid acknowledgement of debt to be created from a series of communications, such as an exchange of emails because in our law, an acknowledgement of debt need not be a single, formal document titled "Acknowledgement of Debt." What is important is that the thread of emails taken together must disclose a clear, unequivocal, and unambiguous written admission of liability for a fixed sum of money. In this case, the respondent not only challenged the email communications on the ground that they were exchanged on a without prejudice basis. The thread itself, demonstrates a negotiation between the parties. The final amount owed was never expressly accepted by the respondent in the emails. So, my view is that whether or not they were made on a without prejudice basis, the emails still fall far short of supporting the claim for summary judgment. By claiming that they were without prejudice communication, the respondent is putting in issue the admissibility of the emails. That admissibility is not an issue which I am required to determine in this application. Better still, the contention cannot be by any standard, deemed to be frivolous or untenable. It raises a triable issue which requires a proper interrogation of the context, purpose and content of the communications at trial. In other words, whether the correspondence falls within that category is a matter that requires proper ventilation

at trial. In any event, it remains within the discretion of the Court to determine whether such communications are admissible. In *Kazingizi & Another* v *Equity Properties (Pvt) Ltd* HH 797-17, where the parties had engaged in correspondence negotiating a payment plan; MATHONSI J (as he then was) stated thus:-

> "In the final analysis, it is always in the discretion of the court to determine whether to admit or not to admit without prejudice communications. In exercising its discretion, the court may remove the privilege attaching to such communication if it deems that the admissibility of such communication is essential in proving certain things, such as the credibility of a witness, or if it considers that the upholding of the privilege would be contrary to public policy, for instance where the communication contains a threat or an act of insolvency."

[20] In the present case, I am ultimately unable to conclude that the applicant's claim is clear and unassailable. The question whether the variations to the invoices were agreed upon, and whether the final figure claimed by the applicant is correct are matters that cannot be resolved at this stage. The respondent's proposed defences are clearly arguable both in fact and in law. It is therefore only just that the respondent be afforded the opportunity to present such at trial. Those issues go to the heart of the applicant's claim and cannot be dismissed as a mere attempt to delay proceedings. The present case is therefore not one in which the respondent must be shut out without being heard. In the end, I am convinced that the respondent has disclosed a *bona fide* defence within the meaning of r 30(1) of the High Court Rules, 2021 and has a reasonable possibility of success at trial.

The collection commission

[21] As correctly pointed by the respondent, the law is that it is incompetent to claim collection commission after the institution of summons in circumstances where such commission was not agreed upon between the parties. Section 70 of the Law Society of Zimbabwe (Amendment) By-laws, 2014 (No. 15), is clear and unambiguous. The relevant provisions state as follows:

> "A legal practitioner instructed to collect an uncontested claim for trade debt shall be entitled and obliged, in *lieu* of any other fees and charges, save for disbursements, and save as to hereinafter provided, to charge his client a collection commission…"

[22] The above position was firmly approved in the authority of *Scotfin Ltd* v *Ngomahuru (Pvt) Ltd* HH97-17, wherein this Court cited with approval the *dicta* in *SEDCO* v *Guvheya* 1994 (2) ZLR 311 (H) as follows:

> "Once summons has been issued for any debt, the legal practitioner is entitled to claim his costs but not collection commission unless, subsequent to the service of summons the debtor has agreed to pay collection commission. Collection commission can only be charged on monies actually collected by the legal practitioner." (emphasis is mine)

[23] In other words, even where a legal practitioner successfully represents his/her client in recovering monies owed to the client, it is not the legal practitioner who would have collected the money. Put in another way, such commission is only due where the monies were collected without the coercion of the court. There is also no dispute here, that the respondent did not consent to the payment of collection commission. The applicant's legal practitioner did not recover any monies even if the applicant would ultimately be successful in the main action. He is therefore not entitled to any collection commission.

Costs

[24] The rule is that, ordinarily, costs follow the cause. I am not convinced by respondent's counsel's push for costs on the higher scale on the argument that the applicant was not acting in good faith. The awarding of costs at a higher scale is reserved for the egregiously bad cases and will not be lightly resorted to. As MUSHORE J put in the case of *Crief Investments (Pvt) Ltd & Anor* v *Grand Home Centre (Pvt) Ltd & 4 Ors* HH12-18, such costs are awarded "where the degree of irregularities, bad behaviour and vexatious proceedings" necessitate their grant and not merely because the winning party requested for them. The threat of costs must never be used to scare litigants, who genuinely believe in their causes, from seeking justice. The conduct of the applicant in this case does not approximate the threshold of the disingenuously filed claims. For that reason, I decline the respondent's request for costs on a punitive scale.

[25] But as already said, the applicant's claim cannot succeed. Accordingly, I order as follows:

1. The application for summary judgment be and is hereby dismissed.

2. The applicant shall bear the respondent's costs of suit.

MUTEVEDZI J…….

Moyo & Nyoni Legal Practitioners, for the applicant

Chimuka Mafunga Commercial Attorneys, for the respondent